

25VECV02269 25VECV02269

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-22

Motion: MOTION TO EXPUNGE LIS PENDENS OR ORDER UNDERTAKING IN THE SUM OF \$700,000 AND FOR ATTORNEY FEES OF \$5,950

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Case Number: 25VECV02269 Hearing Date: September 22, 2026 Dept: I

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

COUNTY
OF LOS ANGELES

ALIREZA
GHOORCHIAN, et al.,

Plaintiffs,

vs.

SURRINDER KUMAR MALHI, et al.,

Defendants.

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CASE

NO: 25VECV02269

[TENTATIVE]

ORDER RE: MOTION TO EXPUNGE LIS PENDENS OR ORDER UNDERTAKING IN THE SUM OF
\$700,000 AND FOR ATTORNEY FEES OF \$5,950

Dept.

I

HEARING

DATE: September 22, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: April 23, 2025

TRIAL

DATE: None set.

I.

BACKGROUND

This is a contractual fraud action arising out of the sale and purchase of the real property located at 20150-20152 Baltar St., Winnetka, CA 91306 (the "Subject Property"). On April 23, 2025, Plaintiffs Alireza Ghoorchian ("Ghoorchian") and Ayda Nosrati ("Nosrati") (collectively, "Plaintiffs") filed a Complaint against Defendants Surrinder Kumar Malhi; Paramjit Kumar Malhi; Sansui Holdings LLC ("Sansui"); and DOES 1 through 20 (collectively, "Defendants"), alleging causes of action for: (1) Breach of Contract; (2) Fraudulent Concealment; (3) Violation of California Civ. Code § 1102; (4) Violation of California Civ. Code § 896; and (5) Violation of Business and Profession Code § 7044.

On August 20, 2025, Defendants Surrinder Kumar Malhi and Paramjit Kumar Malhi (hereinafter, "Malhi Defendants") filed their joint Answer to the Complaint.

On January 30, 2026, Plaintiffs filed a Motion for Leave to File First Amended Complaint. The matter came for hearing on February 27, 2026; the motion was granted. On March 3, 2026, Plaintiffs filed the operative First Amended Complaint ("FAC") against Defendants, alleging causes of action for: (1) Breach of Contract; (2) Fraudulent Concealment; (3) Violation of California Civ. Code § 1102; (4) Violation of California Civ. Code § 896; (5) Violation of Business and Profession Code § 7044; (6) Fraudulent Conveyance; and (7) Constructive Fraud – Civ. Code §§ 3439.04(A)(2), 3439.05.

On March 4, 2026, Plaintiffs filed an Amendment to the FAC identifying SSW Holding LLC as Doe 1.

On April 1, 2026, SSW Holdings, LLC ("SSW"), erroneously sued as SSW Holding LLC, filed its Answer to the FAC. On April 3, 2026, the Malhi Defendants filed their Answer to the FAC.

On June 23, 2026, Plaintiffs Alireza Ghoorchian and Ayda Nosrati filed a notice of Lis Pendens stating that Plaintiff claims title to the Property and thus the object of Plaintiffs' action is to seek to quiet title to the real property with the Assessor's Parcel Number 2327-025-016

and a Legal Description as follows: PARCELS C AND D AS SHOWN BY PARCEL MAP NO. 2009-3238, IN THE CITY OF LOS ANGELES, COUNTY OF LOS ANGELES, STATE OF CALIFORNIA, ON FILE IN BOOK 397, PAGE(S) 32 OF PARCEL MAPS, IN THE OFFICE OF THE COUNTY RECORDER OF SAID COUNTY.

On September 14, 2026, the Malhi Defendants and SSW Holdings LLC filed the instant Ex Parte Motion to Expunge Lis Pendens and Plaintiffs filed an opposition on the same day. On September 15, 2026, the Court set a hearing for September 22, 2026, and set a briefing schedule.

On September 16, 2026, Defendant SSW Holdings filed a supplemental brief and evidentiary objections. On September 18, 2026, Plaintiffs/Cross-Defendants filed an opposition.

II.

LEGAL STANDARDS

“A party to an action who asserts a real property claim may record a notice of pendency of action in which that real property claim is alleged. The notice may be recorded in the office of the recorder of each county in which all or part of the real property is situated. The notice shall contain the names of all parties to the action and a description of the property affected by the action.” (Code Civ. Proc., § 405.20.)

Absent certain circumstances, “the claimant shall, prior to recordation of the notice, cause a copy of the notice to be mailed, by registered or certified mail, return receipt requested, to all known addresses of the parties to whom the real property claim is adverse and to all owners of record of the real property affected by the real property claim as shown by the latest county assessment roll.... Immediately following recordation, a copy of the notice shall also be filed with the court in which the action is pending.” (Code Civ. Proc., § 405.22.)

“Any notice of pendency of action shall be void and invalid as to any adverse party or owner of record unless the requirements of Section 405.22 are met for that party or owner and a proof of service in the form and content specified in Section 1013a has been recorded with the notice of pendency of action.” (Code Civ. Proc., §

405.23.)

"A party

contending that a lis pendens is 'void and invalid' for purposes of [Code of Civil Procedure] section 405.23 due to defective service may raise this ground in a motion for expungement filed pursuant to [Code of Civil Procedure] section 405.30." (J&A Mash & Barrel, LLC v. S. Ct. of Fresno County (2022) 74 Cal.App.5th 1, 24-25.) "At any time after a notice of pendency of action has been recorded, any party . . . with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice." (Code Civ. Proc., §405.30.)

A lis pendens may

be expunged either (1) if the pleadings do not contain a real property claim, or (2) if the court finds that the party claiming the lis pendens has not established by a preponderance of the evidence the probable validity of the real property claim. (Code Civ. Proc., §§ 405.31, 405.32.)

The party

asserting the lis pendens has the burden of proof under Section 405.31 and Section 405.32.¿(Code Civ. Proc., § 405.30) The burden is to demonstrate that their pleadings contain a real property claim and that the probable validity of their real property claim can be established by a preponderance of the evidence. (Code Civ. Proc., §405.31; see also McKnight v. Superior Court (1985) 170 Cal. App. 3d 291, 298 ["the burden is upon the recording party to demonstrate by a preponderance of the evidence that the action was commenced and prosecuted for a proper purpose and in good faith"] .) "Probable validity" exists when "it is more likely than not that the claimant will obtain a judgment on the claim." (Code Civ. Proc., § 405.3.)

Any time after a

notice of pendency of action has been recorded the court may also "upon motion by any person with an interest in the property, require the claimant to give the moving party an undertaking as a condition of maintain the notice in the record title." (Code Civ. Proc., § 405.34.)¿

III.

DISCUSSION

The Malhi Defendants move for an order expunging the lis

pendens, arguing that the Lis Pendens was not properly served on defendants as statutorily required. There was no service of the Lis Pendens by Certified Mail on Defendants nor was a Proof of Service recorded as further required by Statute (Code of Civ. Proc., §§ 405.22, 405.23; Malhi Decl., Exh. A). This deficiency mandates expungement.

In opposition, Plaintiffs/Cross-Defendants note that they have attempted to informally resolve this matter, and that the matter was referred by Court to the Court's mediation panel and the parties have agreed to a mediation. The mediation is likely to happen in October 2026. After filing of the lis pendens on or about June 23, 2026 a notice of Lis Pendens was filed with the Court. Plaintiff's counsel acknowledged the filing of the lis pendens.

Notice

"Any notice of pendency of action shall be void and invalid as to any adverse party or owner of record unless the requirements of Section 405.22 are met for that party or owner and a proof of service in the form and content specified in Section 1013a has been recorded with the notice of pendency of action." Code Civ. Proc., § 405.23. "[A] claimant shall, prior to recordation of the notice, cause a copy of the notice to be mailed, by registered or certified mail, return receipt requested, to all known addresses of the parties to whom the real property claim is adverse and to all owners of record of the real property affected by the real property claim as shown by the latest county assessment roll." (Code Civ. Proc., § 405.22; see also Carr v. Rosien (2015) 238 Cal.App.4th 845, 853 (Carr) ("the mailing requirement is intended to make sure that all owners of the property, and all adverse parties claiming an interest in the property, are aware of the lis pendens").)

In the

Declaration of Alan Abrams in Opposition to Motion to Expunge Lis Pendens, Abrams states, "[p]rior to the filing of this lis pendens, a copy was mailed to Plaintiff's counsel who occupies the same building as my office. After filing of the lis pendens on or about June 23, 2026 a notice of Lis Pendens was filed with Court. Plaintiff's counsel acknowledged the filing of the lis pendens." (Abrams Decl., ¶ 20.)

Plaintiffs

failed to comply with the statutory requirement that prior to recordation of the notice, Plaintiff must cause a copy of the notice to be mailed, by registered or certified mail, return receipt requested, to all known addresses of the parties to whom the real property claim is adverse and to all owners of record of the real property affected by the real property claim as shown by the latest county assessment roll. Here, Plaintiff's counsel does not state whether the mailing was registered or certified and only that it was sent to counsel, not all known addresses to whom the real property claim is adverse.

Because

Plaintiffs failed to comply with the service requirement as specified in Code of Civil Procedure section 405.22, the notice of lis pendens filed by Plaintiff on June 23, 2026, is void and invalid as to Defendants/Cross-Complainants. (Code Civ. Proc., § 405.23; see Carr, supra, 238 Cal.App.4th at p. 853.)

The motion is
granted.

Attorneys'

Fees & Costs

Code of Civil

Procedure section 405.38 provides that, "[t]he court shall direct that the party prevailing on [a motion to expunge lis pendens] be awarded the reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust."

Here, Defendants/Cross-Complainants

is the prevailing party and is thus entitled to reasonable attorney fees and costs. (Code Civ. Proc., § 405.38.) Attorney Green states that his rate is \$595 an hour based on fifty years of experience. (Green Decl., ¶¶ 4, 15.) Attorney Green states that he worked for 8 hours on this motion and anticipates two more hours in preparing the reply and at the court appearance(s). (Green Decl., ¶ 15.)

The Court finds

that \$595 is a reasonable rate based on Attorney Green's experience, but that 8 hours for this motion is an unreasonable amount of time for such an experienced

attorney. The Court grants two hours for the motion and one hour for the appearance at the hearing, for a total of 3 hours at \$595, or \$1,785.

IV.

CONCLUSION

Based

on the foregoing, Defendants' Surrinder Kumar Malhi and Paramjit Kumar Malhi Motion to Expunge Lis Pendens is GRANTED. The request for attorneys fees is granted in the reduced amount of \$1,785.00.

Defendants Surrinder Kumar Malhi, Paramjit Kumar Malhi, and SSW Holdings LLC to give notice.

Dated: September
22, 2026

Hon. Karen Moskowitz

Judge
of the Superior Court